

18.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SYDNEY GUBIN'S FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Sydney Gubin to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

19.

CASE #	CASE NAME	HEARING NAME
CVPS2509048	CAMPOS VS PSTPS, INC. DBA DESERT HOT SPRINGS SPA HOTEL, A CALIFORNIA CORPORATION	HEARING RE: MOTION TO COMPEL

Tentative Ruling:

Interrogatories:

Upon a timely motion to compel further, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (See *Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits." (Code Civ. Proc., § 2030.220(a).) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (*Id.* at § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information...." (*Id.* at § 2030.220(c).)

Special interrogatory no. 10 asks for Defendant to identify all lawsuits, PAGA claims, Labor Commissioner complaints, or other legal actions filed against Defendant for wage and hour violations. Defendant responded by identifying two lawsuits within the statute of limitations. In response, Defendant contends it does not maintain records of litigation as they are within the lawyers' possession. That is not sufficient. As stated above, Defendant must obtain a reasonable and good faith effort to obtain the information. It can contact its attorneys for the information. Nor is there any privilege issue—Plaintiff is just seeking the identification of cases. As for limiting to the statute of limitations, that

is not a proper limitation to which Defendant does not justify. However, the request is overbroad. The court shall limit the request to 10 years and grant the motion.

Form interrogatory no. 209.2 asks whether any employee filed a civil action against Defendant, and to provide the contact information. Defendant identified only the cases, but not the other information. Defendant does not justify the response. The motion shall be granted.

Form interrogatory no. 216.1 asks for information supporting the affirmative defenses, along with witnesses and documents. Defendant states that they do not have any facts. That is a sufficient response.

Requests for Production:

In a motion to compel further responses as to document requests, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (Code Civ. Proc., § 2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.)

For nos. 56-59, these require personnel files, payroll records, documents reflecting meal period/rest period premium pay, and all disciplinary records for cooks. Plaintiff fails to establish good cause. Employment records are protected by the right of privacy. (*Board of Trustees of Leland Stanford Jr. Univ. v. Superior Court* (1981) 119 Cal.App.3d 516, 528-530 (disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557).) As stated by the California Supreme Court: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 (applying to third party privacy rights).)

Here, Plaintiff asserts he needs comparative evidence—but he is not suing on a class action basis for wage and hour claims. To the extent Plaintiff is seeking “me too” evidence, the request is too broad. “Me too” evidence is permitted to prove certain things like motive. (See *Beyda v. City of Los Angeles* (1998) 65 Cal.App.4th 511, 521 (me too evidence to prove hostile work environment); *Johnson v. United Cerebral Palsy/Spastic Children’s Found. Of L.A. & Ventura Counties* (2009) 173 Cal.App.4th 740, 763-767 (me too evidence about pregnancy discrimination to prove motive where workers were in the same location and same supervisors); *Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 114-118 (me too evidence to prove motive where same supervisor and same protected class involved); *Hatai v. Department of Transportation* (2013) 214 Cal.App.4th 1287, 1289-1292 (overruled on other grounds in *Williams v. Chino Valley Independent Fire District*

(2015) 61 Cal.4th 97) (me too evidence of the same protected class permitted).) However, it must relate to the same protected class and same decision maker. (*Pinter-Brown v. Regents of Univ. of Calif.* (2020) 48 Cal.App.5th 55, 97-98.) Here, Plaintiff has not narrowed the scope, and has not overcome the right of privacy.

Nos. 61-65 relate to all litigation related to wage and hour violations, audits, and corrective actions, from 2018 to the present. Defendant provided boilerplate objections, including work-product, attorney-client privilege documents, and privacy. It contends that it does not possess the documents—but does not state why it is unable to comply, e.g., never existed, lost/stolen, destroyed, or not in the possession, custody, or control of the responding party, in which case the response must state the name and address of anyone who has the document. (Code Civ. Proc., § 2031.230.) It still produced all documents that are non-privileged. But, Defendant failed to provide a privilege log. (Code Civ. Proc. 2031.240(c)(1).)

No. 73 requests insurance policies. Defendant objected, then stated it would produce copies, but then contends that there are no insurance policies. Defendant states in the most recent response, there are no insurance policies. There is no need for clarification.

Plaintiff's Motion to Compel Further Responses to Discovery GRANTED in PART.

Defendant to provide code-complaint, verified responses, without objection, to Special Interrogatory #10 within 15 days.

Defendant to provide code-complaint, verified responses, without objection, to Form Interrogatory #209.2 within 15 days.

Defendant to provide code-complaint, verified responses and responsive documents, without objection, to Request for Production #s 61-65, with a privilege log, within 15 days.

Motion to Compel as to Form Interrogatory #216.1, RFP #s 56-59 and 73 DENIED.

Defendant to submit updated verifications as to all supplemental responses, including those not included in this motion, if not previously verified in proper manner. Verifications to be submitted within 15 days.

Plaintiff's request for Sanctions DENIED.

Case Management Conference continued to 3.23.27. Updated Case Management Statements must be filed no later than 10 days before the Case Management Conference. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110